

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "C"

1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA and THOMAS E.
DESOUSA,

Plaintiffs,

-against- Index No.:
600371/2021

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Defendants.

-----X

Zoom Meeting

August 10, 2023
12:38 p.m.

EXAMINATION BEFORE TRIAL of the
Plaintiff, DIANE C. DESOUSA, taken by the
Defendants, pursuant to a Notice, held via Zoom
Video Conference before Danielle M. Rivera, a
Notary Public of the State of New York.

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A P P E A R A N C E S:

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.1 Objections at Depositions

(a) Objections in general. No objections shall be made at a deposition except those which, pursuant to subdivision (b), (c) or (d) of Rule 3115 of the Civil Practice Law and Rules, would be waived if not interposed, and except in compliance with subdivision (e) of such rule. All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the CPLR.

(b) Speaking objections restricted. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by CPLR Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that interfere with the questioning.

221.2 Refusal to answer when objection is made. A deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of the court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in CPLR Rule 3115 or this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis therefor. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.3 Communication with the deponent

An attorney shall not interrupt the deposition for the purpose of communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these rules and, in such event, the reason for the communication shall be stated for the record succinctly and clearly.

IT IS FURTHER STIPULATED AND AGREED that the transcript may be signed before any Notary Public with the same force and effect as if signed before a clerk or a Judge of the court.

IT IS FURTHER STIPULATED AND AGREED that the examination before trial may be utilized for all purposes as provided by the CPLR.

IT IS FURTHER STIPULATED AND AGREED that all rights provided to all parties by the CPLR cannot be deemed waived and the appropriate sections of the CPLR shall be controlling with respect hereto.

IT IS FURTHER STIPULATED AND AGREED by and between the attorneys for the respective parties hereto that a copy of this examination shall be furnished, without charge, to the attorneys representing the witness testifying herein.

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THE REPORTER: My name is Danielle
Rivera. I am a Court Reporter with
Realtime Reporting Services and E-Notary
Public of the State of New York. Today
is Thursday, August 10, 2023 and the
time now is 12:38 p.m.

We are here to take the testimony of
Diane Desousa via Zoom Video Conference.

Pursuant to New York State Notary
Public License Law, Section 135-C, which
authorizes any Notary Public to perform
an electronic material act by utilizing
audio/visual communication, the material
act of administering the oath will be
recorded.

I have already checked your ID, so
I'm going to take this opportunity to
swear you in. Please raise your right
hand, ma'am.

D I A N E C. D E S O U S A, called as a
witness, having been first duly sworn by a
Notary Public of the State of New York, was
examined and testified as follows:

BY THE REPORTER:

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1 D. DESOUSA

2 Q. Please state your name for the record.

3 A. Diane C. Desousa.

4 Q. What is your address?.

5 A. 329 Grand Central Avenue, Amityville,
6 New York 11701.

7 EXAMINATION BY

8 MS. HAMID:

9 Q. Good afternoon, Mrs. Desousa.

10 A. Hi.

11 Q. How are you?

12 A. Good, good.

13 Q. My name is Nabeela Hamid. I represent
14 the Plaintiff, Calvagno, in this these
15 proceedings. I am going to be asking you a
16 series of questions.

17 Have you ever participated in a
18 deposition before?

19 A. No, first time.

20 Q. Okay. So, just some quick rules. You
21 can take a break any time. Though, if I've
22 asked you a question, I just ask you to answer
23 it. Then, we can take a break.

24 We have to answer verbally so our
25 Court Reporter can note it down, and we will

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1 D. DESOUSA

2 try not to speak over each other so we can have
3 a clear record of the questions asked and your
4 answers today. Okay?

5 A. All right.

6 Q. I know you already gave me your
7 current address, but can you give me your
8 current address again?

9 A. It's 329 Grand Central Avenue.

10 Q. Okay. And are you the owner of the
11 property?

12 A. Yes.

13 Q. Do you own this property with your
14 husband, Thomas Desousa?

15 A. Yes.

16 Q. How long have you lived at this
17 address?

18 A. Approximately twenty-two years.

19 Q. Do you know the owners of the property
20 located at 320 Grand Central Avenue,
21 Amityville?

22 A. Yes, I do.

23 Q. Who owns that property?

24 A. I believe -- I can't pronounce the
25 last name, Richard Cagliano.

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1 D. DESOUSA

2 Q. Calvagno?

3 A. Calvagno.

4 Q. How long have you known Mr. Calvagno?

5 A. I believe he's there about three, four
6 years already; four years, probably.

7 Q. How would you define your relationship
8 with Mr. Calvagno?

9 A. It's not good, not good at all.

10 Q. Okay. So, what I'm going to show you
11 is Defendants' Exhibit E that was previously
12 marked at Mr. Desousa's deposition on May 3rd.
13 Okay (handing)? You can take a look at it.

14 A. Where are my glasses?

15 MR. CUOMO: Do you need them?

16 THE WITNESS: I guess I can do
17 without.

18 MR. CUOMO: Does Tom have them?

19 THE WITNESS: No, he doesn't. I
20 have them at home. I ran out with my
21 sunglasses.

22 MR. CUOMO: Okay. Are they just
23 standard reading glasses?

24 THE WITNESS: Yes -- no, they're not
25 standard. They're prescription.

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1 D. DESOUSA

2 MR. CUOMO: Okay.

3 (Whereupon, the Witness perused the
4 aforementioned document.)

5 Q. Since you've had a chance to look at
6 the document, do you recognize the document?

7 A. What do you mean "recognize"? Like,
8 what went on?

9 Q. Yes.

10 A. Of course I do, yes.

11 Q. Do you know what this document is
12 referred to as?

13 A. A complaint, right?

14 Q. Okay, thank you. If you look at the
15 end, I'm just going to flip it for you; is that
16 your signature?

17 A. Yes.

18 Q. Okay. And it has been notarized?

19 A. Yes.

20 Q. And you understand this document is a
21 sworn statement?

22 A. Yes.

23 Q. All right. I'm going to flip to
24 page 2 for you. So, on page 2, paragraph 9,
25 the allegation asserted by you is, "Upon

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1 D. DESOUSA

2 information and belief, Defendants' Dodge
3 automobile has a modified exhaust system."

4 Have you seen Defendants' Dodge
5 vehicle being modified?

6 A. How would I see it? I've heard it,
7 but I couldn't see it.

8 Q. Okay. What did you hear?

9 A. Like a rocket taking off.

10 Q. Then, on page 3, paragraph 12, you've
11 alleged that, "Upon information and belief,
12 Defendants' operation of his Dodge automobile
13 violates both New York State and Suffolk County
14 Noise Codes."

15 What specific codes are you referring
16 to?

17 A. That, my husband does. I really
18 (indicating).

19 Q. You don't have any knowledge of it?

20 A. No. I know, you know, there is one.
21 It's just, he's the one that looked up the
22 information, not me.

23 Q. Okay. Did you ever call the police
24 regarding these noise issues?

25 A. I believe my husband did, yes.

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1 D. DESOUSA

2 Q. Okay.

3 A. I'm not quite sure of that but --

4 Q. But you, personally, you haven't?

5 A. I haven't, no.

6 Q. Okay. Looking at paragraph 20 on
7 page 4, you've asserted that Defendants'
8 actions create excessive noise and vibrations,
9 which are upsetting to both Plaintiffs causing
10 stomach upset, nausea and manifesting itself in
11 other physical ways as well."

12 Which actions are you referring to?

13 A. Oh, the whole thing. I'm referring to
14 the -- he -- I like to sleep late in the
15 morning. I've raised my children. I've raised
16 my grandchildren. And every morning, it shakes
17 my bed, actually. It's so loud.

18 Q. What shakes your bed?

19 A. His car starting. Because, I guess,
20 the muffler or whatever it is, the exhaust
21 comes right straight across the street and it's
22 so loud. Like I said, it's like a rocket
23 taking off.

24 Then, it still goes on because I can
25 hear him all the way to Merrick Road. As he's

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2 going, he's speeding up the block. I've had
3 neighbors asking me, you know, "What's going on
4 every day?"

5 Q. And these actions cause your stomach
6 to be upset and nausea?

7 A. Yes.

8 Q. Have you gone to a physician or a
9 doctor?

10 A. I do have a physician and the doctor.
11 But, I really don't want to get into, you know,
12 talk about my illnesses or whatever.

13 Q. Okay. Which doctor is it that you
14 see?

15 A. Dr. Ben Hurie. H-U-R-I-E, I think.

16 Q. Can you spell it?

17 A. H-U-R-I-E, I think.

18 MR. CUOMO: If you leave a space, we
19 will insert the proper spelling when we
20 get the transcript.

21 MS. HAMID: Yes.

22

23

24 Q. How long have you been seeing this
25 doctor?

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1 D. DESOUSA

2 A. He has been my regular doctor for
3 years.

4 Q. Okay. And you are not taking any
5 medication for the nausea and the upset
6 stomach?

7 A. I take over-the-counter.

8 Q. Over-the-counter, okay. And what do
9 you take over-the-counter?

10 A. Just, like, Pepto, Pepto Bismol.

11 Q. Pepto Bismol?

12 A. Yes.

13 Q. When was the last time you saw your
14 doctor?

15 THE WITNESS: Do we really have to
16 go this far?

17 MR. CUOMO: You have to provide
18 an --

19 THE WITNESS: Okay.

20 A. All right. The last time I saw him
21 was approximately three months ago.

22 Q. Okay. Now, on page 4, paragraph 21,
23 you've stated that "Plaintiffs have stopped
24 taking walks because of the dangers posed by
25 Defendants' reckless driving."

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1 D. DESOUSA

2 When was the last time you took a walk
3 on the street Grand Central Avenue?

4 A. Oh, gosh. Maybe a year and a half
5 ago.

6 Q. A year and a half ago, okay.

7 A. Two, around about that range.

8 Q. Do you do any gardening or yard work
9 in front of your house?

10 A. We used to, no more, though. I
11 stopped.

12 Q. Do you now hire someone to do it and
13 take care of it?

14 A. Yes, someone mows the lawns.

15 Q. Now we're just going to take a look at
16 paragraph 70. In paragraph 70, you have
17 alleged that "The Defendants' conduct and
18 actions have had the intended impact upon the
19 Plaintiffs and have caused them to suffer
20 severe emotional distress."

21 A. Right.

22 Q. When you say "suffer severe emotional
23 distress," are you being treated by a
24 psychiatrist or a psychologist?

25 A. No.

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D. DESOUSA

Q. Okay. And not any other therapist?

A. No.

MS. HAMID: All right, Ms. Desousa.

Those are all of the questions I have
for you.

THE WITNESS: Okay.

MS. HAMID: Thank you so much.

(Whereupon, at 12:54 p.m., the
Examination of this witness was
concluded.)

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D E C L A R A T I O N

I hereby certify that having been first
duly sworn to testify to the truth, I gave the
above testimony.

I FURTHER CERTIFY that the foregoing
transcript is a true and correct transcript of
the testimony given by me at the time and place
specified hereinbefore.

DIANE C. DESOUSA

Subscribed and sworn to before me
this ____ day of _____ 20__.

NOTARY PUBLIC

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E X H I B I T S

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(None)		

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(None)		

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C E R T I F I C A T E

STATE OF NEW YORK)

: SS.:

COUNTY OF NASSAU)

I, DANIELLE M. RIVERA, a Notary Public for
and within the State of New York, do hereby
certify:

That the witness whose examination is
hereinbefore set forth was duly sworn and that
such examination is a true record of the
testimony given by that witness.

I further certify that I am not related to
any of the parties to this action by blood or by
marriage and that I am in no way interested in
the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my
hand this 10th day of August 2023.

-----
DANIELLE RIVERA

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Witness Name: DIANE C. DESOUSA
Examination Date: August 10, 2023

(Notary Public)

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